

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 1617 of 2020

Saiful Islam Palash

.....Convict-Petitioner.

-Versus-

The State and another.

.....Opposite party.

Mr. Md. Ruhul Amin, Advocate

.....For the Petitioner.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.... For the State-Opposite party No.1.

Mr. Md. Moshiur Rahman, Advocate

.... For the opposite party No.2

Heard on 08.11.2023,28.11.2023 and
Judgment on 09.01.2024

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 15.10.2020 passed by the learned Metropolitan Sessions Judge, Dhaka in Criminal Appeal No. 671 of 2020 dismissing the appeal summarily on the

ground of limitation and thereby affirmed the judgment and order of conviction and sentence dated 20.09.2012 passed by the learned Chief Metropolitan Magistrate, Dhaka in C.R Case No. 549 of 2010 arising out of T.R. Case No. 103 of 2012 convicting the petitioner under section 406 and 420 of the Penal Code and sentencing him thereunder to suffer rigorous imprisonment for a period of 3(three) years and 5(five) years respectively and to pay a fine of Taka 10,000/- (ten thousand) in default to suffer imprisonment for a period of 3 (three) months more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Material facts relevant for disposal of the Rule, briefly, are that one, Md. Mannan as complainant filed a petition of complainant being C.R Case No. 549 of 2010 in the Court of the learned Chief Metropolitan Magistrate, Dhaka under section 406/420/506/109 of the Penal Code against the convict petitioner alleging, inter-alia, that on several occasions the convict-petitioner took total Taka 20,70,000/- (twenty lakhs seventy thousand) from the complainant opposite party No.2 for sending 40 persons in Iraq but finally he did not send those persons in Iraq as a result of which the complainant opposite party No.2 demanded the said money but the accused-

petitioner on various pretext did not pay the said money and hence, the case.

On receipt of the petition of complaint, the learned Metropolitan Magistrate examined the complainant under section 200 cr. p. c. and took cognizance against the accused-petitioner under section 406/420/506 of the Penal Code.

Thereafter, the police arrested the accused-petitioner and forwarded to the Court and the accused petitioner was obtained bail on 25.05.2010.

Ultimately, the accused-petitioner was put on trial to answer a charge under sections 420/406 of the Penal Code, 1881. Trial was held in-absentia against the accused-petitioner as the accused became absconding after being enlarged on bail.

At the trial, the prosecution examined in all 3(three) witnesses to prove the case while the defence examined none.

The learned Chief Metropolitan Magistrate, Dhaka after completion of trial by his judgment and order dated 20.09.2012 found the accused-petitioner guilty under section 406 and 420 of the Penal Code, 1860 and sentenced him thereunder to suffer rigorous imprisonment for a period of 3(three) years and 5(five)

years respectively and to pay a fine of Taka 10,000/- (ten thousand) in default to suffer imprisonment for a period of 3 (three) months more.

Against which the accused-petitioner preferred Criminal Appeal No. 671 of 2020 before the learned Metropolitan Sessions Judge, Dhaka with an application for delay of 2944 days in filing the criminal appeal.

The learned Metropolitan Sessions Judge, Dhaka after hearing the matter by his order dated 15.10.2020 dismissed the appeal summarily on the ground of limitation and thereby affirmed the judgment and order of conviction and sentence passed by the trial Court.

Being aggrieved by the aforesaid impugned order dated 15.10.2020 passed by the learned Metropolitan Sessions Judge, Dhaka the petitioner moved before this Court and obtained the present Rule.

Mr. Md. Ruhul Amin, the learned Advocate appearing for the convict-petitioner and Mr. Md. Moshir Rahman, the learned Advocate appearing for the complainant-opposite party No.2 after placing an application for compromise jointly submitted that during the pendency of the Rule, the subject matter has already been compromised in between the parties out of the

Court and according to apashnama the convict-petitioner has already paid entire outstanding dues.

Having heard the learned Advocates for both the sides, perused the deed of “apashnama” as evidenced by “annexure-X” to the supplementary affidavit dated 29.11.2023 and also perused the application for acquitting the convict -petitioner filed by the learned Advocates for both the parties by putting their joint signatures and other materials on record.

On going through the materials on record, it appears that the subject matter of the case has been disposed of between the parties out of the Court and the convict-petitioner has already paid the entire outstanding dues to the complainant opposite party No.2.

Having regard to the submission made by the learned Advocates for both the parties, I am of the view that there is no reason to accept the compromise entered into between the parties. Section 406 and 420 are compoundable offences under those sections. Since the proceeding arises out of monetary transaction, I am of the view that the dispute between the parties has been resolved out of Court by the parties on compromise which should be allowed by the Court at any stage of the proceeding even at appellate or revisional stage.

For the reasons stated above, I allow the prayer made on behalf of the contesting parties with the direction that compromise done by the parties is hereby accepted and dispose of the Rule on the basis of the said compromise.

In the result, the Rule is made absolute by holding that since the matter has been compromised between the parties and the amount in terms of the said compromise has been paid, the appellant is entitled to acquittal.

The impugned judgment and order dated 15.10.2020 passed by the learned Metropolitan Sessions Judge, Dhaka in Criminal Appeal No. 671 of 2020 dismissing the appeal summarily on the ground of limitation thereby affirming the judgment and order of conviction and sentence dated 20.09.2012 passed by the learned Chief Metropolitan Magistrate, Dhaka in C.R Case No. 549 of 2010 arising out of T.R. Case No. 103 of 2012 is set-aside and the convict petitioner is acquitted of the charge under Section 406/420 of the Penal Code.

Convict petitioner, Saiful Islam Palash is discharged from his bail bond.

Send down the lower Court records at once.